

Court No. - 3

Case :- WRIT - C No. - 32659 of 2021

Petitioner :- Khalid

Respondent :- State Of Up And Another

Counsel for Petitioner :- Sandeep Kumar Tripathi

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Brij Raj Singh,J.

Heard through video conferencing Sri Sandeep Kumar Tripathi, learned standing counsel for the respondent no.1 and Sri Rajesh Yadav, learned standing counsel for the respondent no.2.

With the consent of learned counsels for the parties, this writ petition is being finally heard without calling for a counter affidavit.

Learned counsel for the respondent no.2 states on instructions that against the impugned demand the petitioner has a right to make a representation under Para 6.5 of the U.P. Electricity Supply Code 2005 and if such a representation is submitted by the petitioner within a time bound period then the same shall be decided in accordance with law very expeditiously.

Learned counsel for the petitioner agreed to the submission made by learned counsel for the respondent no.2.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed off** giving liberty to the petitioner to make a representation under Para 6.5 of the U.P. Electricity Supply Code 2005 before the respondent no.2 within three weeks from today alongwith a copy of this order and in the event such a representation/objection is made to the impugned demand of Rs.5,24,756/- the same shall be decided by the respondent no.2 in accordance with law, expeditiously, preferably within next three weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of six weeks or till the representation/objection of the petitioner as aforesaid is decided by the respondent no.2, which ever is earlier, no coercive action shall be taken against the petitioner pursuant to the impugned recovery notice/demand.

Order Date :- 3.1.2022/vkg